

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isabelle James	Team: Squad #09	CCRB Case #: 201705278	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 06/16/2017 12:45 AM	Location of Incident: a bench outside of § 87(2)(b)	18 Mo. SOL 12/16/2018	Precinct: 43		
Date/Time CV Reported Thu, 06/22/2017 6:28 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/28/2017 4:26 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM George Isabel	03122	960711	PSA 8
2. POM Edwin Garcia	10122	960572	PSA 8

Officer(s)	Allegation	Investigator Recommendation
A . POM George Isabel	Abuse: Police Officer George Isabel stopped § 87(2)(b)	A . Exonerated
B . POM George Isabel	Abuse: Police Officer George Isabel stopped § 87(2)(b)	B . Exonerated
C . POM Edwin Garcia	Abuse: Police Officer Edwin Garcia stopped § 87(2)(b)	C . Exonerated
D . POM Edwin Garcia	Abuse: Police Officer Edwin Garcia stopped § 87(2)(b)	D . Exonerated
E . POM Edwin Garcia	Abuse: Police Officer Edwin Garcia searched § 87(2)(b)	E . Unsubstantiated
F . POM George Isabel	Abuse: Police Officer George Isabel threatened to issue a summons to § 87(2)(b)	F . Substantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On June 22, 2017, § 87(2)(b) filed this complaint with IAB. On June 28, 2017, the CCRB received this complaint via IAB log #17-24428.

On June 16, 2017, at approximately 12:45 a.m., § 87(2)(b) and § 87(2)(b) were sitting on a bench by the entrance to § 87(2)(b) in the Bronx. While talking to § 87(2)(b) and arranging belongings in her handbag, § 87(2)(b) observed two officers, identified as Police Officer George Isabel and Police Officer Edwin Garcia of Police Service Area 8, walking toward her and § 87(2)(b). At that time, § 87(2)(b) removed four to five loose cigarettes from a package and handed them to § 87(2)(b) and § 87(2)(b) placed the loose cigarettes in the open front pocket of her sweatshirt. § 87(2)(b) then handed § 87(2)(b) a few cash notes.

§ 87(2)(b) then observed the officers standing immediately in front of her and stood up. PO Isabel said, “What did he give you? Where’s the drugs?” (**Allegations A - D**). § 87(2)(b) replied, “What drugs,” and removed the loose cigarettes from her pockets. § 87(2)(b) then showed PO Isabel the loose cigarettes and money § 87(2)(b) had given her. PO Garcia then allegedly reached into § 87(2)(b)’s front sweatshirt pocket and searched inside (**Allegation E**). After confirming there was nothing else in § 87(2)(b)’s pocket, PO Isabel then removed his hand and told § 87(2)(b) that he had suspected § 87(2)(b) of giving her narcotics. PO Isabel and PO Garcia then walked away from § 87(2)(b) and § 87(2)(b) towards § 87(2)(b).

As the officers were walking away, § 87(2)(b) began yelling profanities at PO Garcia and PO Isabel at a loud volume. PO Isabel yelled back to § 87(2)(b) “We can come back here and get you for disorderly conduct” (**Allegation F**). At that time, § 87(2)(b) observed two individuals, neither of whom she knew, walk into the NYCHA complex courtyard from the street.

Neither § 87(2)(b) nor § 87(2)(b) were summonsed or arrested as a result of this incident.

There is no video footage of this incident.

§ 87(2)(g).

§ 87(2)(g).

Mediation, Civil and Criminal Histories

- During her phone statement and interview at the CCRB, § 87(2)(b) rejected mediation, § 87(2)(b).
- On October 26, 2017, a Freedom of Information Law request was made of the New York City Comptroller’s Office for any Notice of Claim filed in regard to this incident (**Board Review 1**). The results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving [§ 87(2)(b)] (Board Review 4).
- This is the third CCRB complaint involving [§ 87(2)(b)] (Board Review 5). [§ 87(2)(b)] [REDACTED]
- PO Isabel has been a member of the NYPD for one year and has no prior CCRB allegations pleaded against him.
- PO Garcia has been a member of the NYPD for one year and has no prior CCRB allegations pleaded against him.

Potential Issues

During her statement to the CCRB, [§ 87(2)(b)] stated that two individuals walked by her and [§ 87(2)(b)] after the officers had stopped them; however, [§ 87(2)(b)] was unable to identify either individual. [§ 87(2)(b)] did not know if the two individuals witnessed her and [§ 87(2)(b)]'s interaction with PO Isabel and PO Garcia. Because [§ 87(2)(b)] was unable to provide any contact information for these two individuals, the investigation was unable to obtain statements from them regarding this incident.

Findings and Recommendations

Allegations Not Pleaded

- **Abuse of Authority – Frisk:** During his statement to the CCRB, PO Garcia acknowledged frisking the pocket inside which [§ 87(2)(b)] placed the loose cigarettes as the officers were approaching him. However, [§ 87(2)(b)] and PO Isabel did not allege that PO Garcia frisked [§ 87(2)(b)] [§ 87(2)(g)] [REDACTED]

Allegation A – Abuse of Authority: Police Officer George Isabel stopped § 87(2)(b)

Allegation B – Abuse of Authority: Police Officer George Isabel stopped § 87(2)(b)

Allegation C – Abuse of Authority: Police Officer Edwin Garcia stopped § 87(2)(b)

Allegation D – Abuse of Authority: Police Officer Edwin Garcia stopped § 87(2)(b)

Allegation E – Abuse of Authority: Police Officer Edwin Garcia searched § 87(2)(b)

During her statement to the CCRB, § 87(2)(b) stated that she and § 87(2)(b) were sitting on a bench in the courtyard of the § 87(2)(b) in the Bronx, outside of the entrance to § 87(2)(b). § 87(2)(b) alleged that after § 87(2)(b) handed her four to five loose cigarettes and a few bills of cash, she observed PO Isabel and PO Garcia standing above her. PO Garcia asked § 87(2)(b) where the drugs were and § 87(2)(b) replied, “What drugs?” § 87(2)(b) then stood up and showed PO Isabel the loose cigarettes and cash that § 87(2)(b) had given her. PO Garcia allegedly reached into § 87(2)(b)'s open front sweatshirt pocket, felt around inside, and then removed his hand. PO Isabel and PO Garcia then walked away.

§ 87(2)(b) testified that he gave § 87(2)(b) three to four loose cigarettes and five to ten loose one dollar bills while they were sitting on a bench inside the courtyard. A few seconds later, § 87(2)(b) saw PO Isabel and PO Garcia, who he had presumed approached them from the rear, standing in front of him. When § 87(2)(b) reached into her pocket, PO Garcia said, “don’t move,” and asked what § 87(2)(b) had given to § 87(2)(b). § 87(2)(b) asked PO Garcia why he was asking that question, and PO Garcia replied that he had witnessed a narcotics transaction. PO Garcia then ordered § 87(2)(b) to show him what was in her hand, and § 87(2)(b) opened her hand to show the officers the loose cigarettes.

PO Garcia then asked what else § 87(2)(b) had given § 87(2)(b) and § 87(2)(b) replied that § 87(2)(b) had given her money, showing PO Garcia the folded bills which had been in her pocket. PO Garcia then informed § 87(2)(b) he was going to search her pocket. § 87(2)(b) allegedly replied, “If it makes you feel happy, go ahead.” PO Garcia then reached inside § 87(2)(b)'s open front sweatshirt pocket and moved items around while looking inside. PO Garcia then removed his hand and said to PO Garcia, “Let’s go.”

PO Isabel testified that while working a foot post at the § 87(2)(b), he and PO Garcia observed § 87(2)(b) and § 87(2)(b) standing approximately 30 feet away. As the officers approached § 87(2)(b) and § 87(2)(b) PO Isabel observed a two to three inch long white object in § 87(2)(b)'s hand and an unknown quantity of cash in § 87(2)(b)'s. Based upon its appearance, PO Isabel suspected the long white object to be narcotics. § 87(2)(b) and § 87(2)(b) then noticed the officers walking towards them and turned away so that their backs were facing the officers. As § 87(2)(b) turned away from the officers, he placed the white object in his shirt or jacket pocket. This observation further caused PO Isabel to believe that § 87(2)(b) was attempting to conceal possible narcotics.

Either PO Isabel or PO Garcia then asked § 87(2)(b) what was in his hand. PO Isabel then asked § 87(2)(b) to show the officers what was in his hand. PO § 87(2)(b) then removed his hand from his pocket and showed the officers three or four loose cigarettes. Upon seeing the loose cigarettes, PO Isabel and PO Garcia apologized and began to walk away. PO Isabel denied that either he or

PO Garcia searched § 87(2)(b) or § 87(2)(b) and specifically denied placing his hand in § 87(2)(b)'s front sweatshirt pocket.

§ 87(2)(g) PO Garcia stated that he believed the white objects in § 87(2)(b)'s hand were manufactured marijuana cigarettes and therefore believed that § 87(2)(b) was in the process of selling marijuana to § 87(2)(b). Upon approaching § 87(2)(b) and § 87(2)(b), PO Garcia asked them what they were doing. When § 87(2)(b) did not answer the question directly, PO Garcia patted down the pocket in which § 87(2)(b) had placed the cigarettes. PO Garcia then opened § 87(2)(b)'s pocket, looked inside, and saw several broken tobacco cigarettes inside. PO Garcia denied searching § 87(2)(b)'s pocket. PO Garcia denied frisking and searching § 87(2)(b).

Based on People v. DeBour, 40 N.Y.2d 201 (1976), an officer is allowed to conduct a forcible stop of a person if the officer has reasonable suspicion of criminality (**Board Review 6**).

In People v Thomas 852 N.Y.S.2d 83 (2008), the court upheld the defendant's conviction based on a narcotics officer's observation of suspicious actions by the defendant and the other participants in the transaction which the officer believed was inconsistent with a transfer of some lawful item and instead indicated that the defendant had just acquired drugs (**Board Review 7**). Accordingly, the officers had reasonable suspicion to stop the defendant's car.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation A, B, C, and D** be closed as **exonerated**.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
Therefore, it is recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation F – Abuse of Authority: Police Officer George Isabel threatened to arrest

§ 87(2)(b) [REDACTED]
§ 87(2)(b) testified that as the officers walked away after determining that the items exchanged between her and § 87(2)(b) were loose cigarettes, she began yelling profanities at the

officers at a raised volume. PO Isabel allegedly replied, “We can come back here and get you for disorderly conduct.”

§ 87(2)(g) § 87(2)(b) did not recall specifically what PO Isabel said, but it was something along the lines of, “give you disorderly conduct.”

PO Isabel testified that as he and PO Garcia began to walk away from § 87(2)(b) he recalled hearing § 87(2)(b) yelling at the officers. He did not recall what specifically § 87(2)(b) was yelling, but recalled her using profanity. PO Isabel then turned around and informed § 87(2)(b) that is she continued to yell, she could be issued a summons for disorderly conduct. § 87(2)(b) then stopped yelling. When asked to describe how § 87(2)(b) was acting disorderly, PO Isabel stated, “Just that, just yelling. I am sure she was cursing.” PO Isabel did not see any civilians in the immediate area and he did not see any civilians looking out of their windows or come out of any of the buildings as a result of § 87(2)(b)s yelling.

PO Garcia testified that he denied informing § 87(2)(b) or § 87(2)(b) that they could have been arrested for disorderly conduct. PO Garcia also testified that he did not observe § 87(2)(b) or § 87(2)(b) committing any arrestable offenses.

New York State Penal Law 240.20 states that a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance, or alarm, or recklessly creating a risk thereof, (2) he makes unreasonable noise or (3) in a public place, he uses abusive or obscene language, or makes an obscene gesture (**Board Review 8**).

Office of the Deputy Commissioner’s Legal Bureau Bulletin Vol. 47, No. 2 (February, 2017) states that for an arrestee to be charged under any of the subsections of New York State Penal Law 240.20, the conduct must: (1) have caused actual or threatened public harm and (2) been done with the intent to cause public inconvenience, annoyance, or alarm (**Board Review 9**).

In People v Gonzalez 25 N.Y.3d 1100 (2015), the court explained that a person may be arrested for disorderly conducted only when the situation extends beyond the exchange between the individual disputants to a point where it becomes a potential or immediate public concern. In this case, the defendant’s conduct was clearly intended to aggravate just the police officer at whom he shouted, as opposed to the bystanders (**Board Review 10**).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

[REDACTED]

Squad: **9**

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date